

Enforcement inspection did not occur until August 19, 2024. (Reply, pp. 6–7.) However, there is no timing defect because the 2023 notice is alleged to have been served in retaliation for habitability complaints and lawful rent withholding (Compl. ¶ 116), which are protected activities independent of any report to code enforcement. Defendants further argue the utility shut-off alleged happened at an "unstated time," the notice terminating tenancy was "never acted upon," and the alleged lack of separate utility meters is merely a "billing arrangement" rather than an unlawful rent increase or despicable conduct. These latter arguments impermissibly rely on matters outside of the pleadings.

Whether Plaintiffs will be able to prove entitlement to punitive damages by clear and convincing evidence remains to be seen. However, the Court finds the allegations of the complaint sufficient to show their entitlement to punitive damages at this stage.

As noted above, Defendants failed to brief their challenges to the treble damages prayers and factual allegations in their opening motion and raised new statutory and corporate liability arguments for the first time in their reply. The Court declines to consider unbriefed issues or arguments raised for the first time on reply.

Disposition

Based on the foregoing, the motion to strike is **denied**.

13. 9:00 AM CASE NUMBER: N26-0541
CASE NAME: CARMEN SAMIERE VS. MATEO MAYNE
PETITION TO CORRECT OR VACATE ARBITRATION AWARD
FILED BY: SAMIERE, CARMEN MARIE
TENTATIVE RULING:

This matter is not on calendar. The matter was decided.